**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**UNITED STATES DISTRICT COURT**

**EASTERN DISTRICT OF CALIFORNIA**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,**<br><br>Defendants. | Case No. 2:26-cv-02847-DAD-CKD<br><br>**PLAINTIFF'S OPPOSITION TO DEFENDANT UNITED PARCEL SERVICE, INC.'S MOTION FOR EXTENSION OF TIME TO FILE REPLY (ECF No. 11)**<br><br>Hearing (ECF No. 9): Oct. 7, 2026<br>Time: 10:00 a.m.<br>Courtroom: 24 (CKD) (Zoom)<br>Judge: Hon. Carolyn K. Delaney<br><br>Action filed: July 15, 2026<br>Removed: August 20, 2026 |

TO THE HONORABLE COURT, AND TO DEFENDANT UNITED PARCEL SERVICE, INC. AND ITS ATTORNEYS OF RECORD:

Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, opposes Defendant United Parcel Service, Inc.'s ("UPS") motion for an extension of time to file a reply in support of its Rule 12(b)(6) motion (ECF No. 11). The paper is captioned a "Consent Motion." Paragraph 4 of the same paper states that Plaintiff does not consent. The live reply deadline under Eastern District Local Rule 230(d) is Tuesday, September 8, 2026. UPS had ample time to meet that deadline. An extension would prejudice Plaintiff. The Court should deny the motion.

## I.

## THE MOTION IS NOT CONSENTED AND IS BROUGHT UNDER THE WRONG RULE

UPS invokes Federal Rule of Civil Procedure 16(b)(4). (ECF No. 11 at 2; id. ¶6.) That rule governs modification of a scheduling order. No Rule 16 scheduling order in this action sets the reply date. The reply is set by Local Rule 230(d): "No later than ten (10) days after the opposition was filed, the moving party may serve and file a reply."

Plaintiff's opposition is ECF No. 10, filed August 28, 2026, to the live motion (ECF No. 9). UPS's paragraph 2 cites a September 7 deadline to "[Doc. 8]." ECF No. 8 is the August 27 minute order that vacated the October 5 hearing on the first notice (ECF No. 7, marked disregarded). It is not a reply deadline. Ten days after August 28 is Monday, September 7, 2026, which is Labor Day. Under Federal Rule of Civil Procedure 6(a)(1)(C) the period continues to Tuesday, September 8, 2026.

An opposed request to move that date is governed by Local Rule 144. Local Rule 144(a) allows one initial twenty-eight-day stipulation to answer a complaint or to respond to written discovery, without Court approval. "All other extensions of time must be approved by the Court." This is not that stipulation. Local Rule 144(c) permits an initial ex parte extension only on an affidavit that a stipulation cannot reasonably be obtained, explaining why and why the extension is necessary. "Except for one such initial extension, ex parte applications for extension of time are not ordinarily granted." There is no affidavit. Local Rule 144(d) required counsel to seek the extension "as soon as the need for an extension becomes apparent" and looks with disfavor on requests brought on the required filing date. Counsel waited until the last business day before Labor Day.

If the paper is treated as a motion for administrative relief -- Standing Order IV lists "requests to extend a response deadline" and "requests to alter a briefing schedule" -- Local Rule

233(a) requires that label, a proposed order, and a statement of every affected party's position. UPS labeled the paper a consent motion, lodged no proposed order, and recited Plaintiff's non-consent in the same filing. If it is treated as an ex parte application -- a refused stipulation, filed Friday of a holiday weekend, with no hearing noticed -- Standing Order III required contact with the courtroom deputy, a statement whether an opposition will be filed, and an affidavit of need, inability to obtain a stipulation, and why the request cannot be noticed under Local Rule 230. The motion recites none of those. Plaintiff is filing this opposition the same day so the Court has his position before the reply clock runs.

## II.

## UPS HAD AMPLE TIME

UPS first noticed the motion for October 5, 2026, before District Judge Drozd. (ECF No. 7.) The Court vacated that hearing and directed UPS to re-notice before the assigned magistrate judge. (ECF No. 8.) The live motion is ECF No. 9, noticed for October 7, 2026, at 10:00 a.m. in Courtroom 24 before Magistrate Judge Delaney. UPS chose that date. The ten-day reply clock was knowable the day the opposition was filed.

Plaintiff filed a twenty-page opposition on August 28, 2026, twelve days before the Local Rule 230(c) opposition deadline. UPS has had those papers for a week. It used that week to telephone Plaintiff on September 4 and to ask first for thirty days, then for fifteen. Plaintiff declined both. Counsel then filed this paper seeking September 14. A thirty-day extension would have run to October 8, after the October 7 hearing. That sequence is not diligence. It is a moving target presented on the last business day before the holiday.

The stated cause is "UPS counsel's personal matters, including but not limited to non-refundable, pre-planned travel for the upcoming holiday weekend." (ECF No. 11 ¶7.) Pre-planned, non-refundable travel is known in advance. It was known when UPS selected the

October 7 hearing. It was known when the opposition arrived on August 28. It does not become good cause on the Friday of the weekend for which the travel was already booked. The motion gives no travel dates, no showing that the reply could not be prepared before travel, and no showing that another lawyer at the firm could file it. "Including but not limited to" is not a showing.

## III.

## AN EXTENSION WOULD PREJUDICE PLAINTIFF

UPS asserts that the request "will not prejudice Plaintiff because the hearing for this Motion is presently scheduled for October 5, 2026." (ECF No. 11 ¶8.) That hearing was vacated. (ECF No. 8.) The live hearing is October 7, 2026, at 10:00 a.m. in Courtroom 24 before Magistrate Judge Delaney. (ECF No. 9.) The hearing date is not a substitute for a complete, timely briefing set. Plaintiff is proceeding in propria persona. He prepared on the Local Rule clock. Sliding the reply a week compresses the time he has to read it, to decide whether Local Rule 230(m)(1) requires an objection to new reply evidence -- due seven days after the reply is filed -- and to prepare for oral argument on October 7.

If the reply is filed September 14, an objection under Local Rule 230(m)(1) would be due on or about September 21. Plaintiff is served by mail. UPS served this motion by mail only, on Friday of a holiday weekend, and listed Plaintiff's email as bnn.cdla@gmail.com. (ECF No. 11-1.) That is not his address. His address is bnn.cdl@gmail.com, as it appears on the complaint, on ECF No. 10, and on every paper he has served in this action. He may not have ECF No. 11 in hand before the reply deadline. That is prejudice.

Federal Rule of Civil Procedure 15(a)(1)(B) still allows one amendment as of right within twenty-one days after service of a Rule 12(b) motion. UPS served the motion to dismiss by mail on August 26, 2026. That window runs through September 16, 2026, and may run through

September 19 under Rule 6(d). A reply filed September 14 lands inside that window. Plaintiff is entitled to decide whether to amend with the reply in hand, or to let the window close, on a clock that does not move because counsel has pre-planned travel. An extension forces that choice without the reply, or in a compressed few days after a late reply arrives by mail. Each version of the ask -- thirty days, then fifteen, now September 14 -- also resets the hearing-preparation calendar. Plaintiff should not have to re-plan October 7 every time the request shrinks.

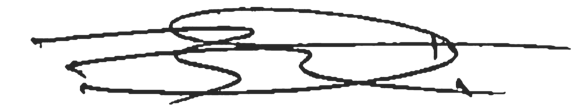
## IV.

## CONCLUSION

The motion is not consented. It cites the wrong rule, misstates the deadline, and is unsupported by an affidavit. UPS had a week with the opposition and a hearing date it chose. Pre-planned holiday travel is not good cause presented on the Friday before Labor Day. An extension would prejudice a pro se plaintiff preparing for October 7 on the Local Rule clock, served by mail, with a Rule 15 window still open. The Court should deny ECF No. 11. The reply remains due September 8, 2026. No proposed order is lodged; Local Rule 233(a)(4) runs against the moving party.

Dated: September 4, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

V.

UNITED PARCEL SERVICE, INC.; and
DOES 1 through 10, inclusive
Defendants

/

Case Number: 2:26-cv-02847-DAD-CKD

**PROOF OF SERVICE**

I hereby certify that on September 4, 2026, I served a copy of the attached

Plaintiff's Opposition to Defendant United Parcel Service, Inc.'s Motion for Extension of Time to File Reply (ECF No. 11),

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

**(List Name and Address of Each Defendant or Attorney Served)**

Vanessa W. Mott, Esq. (SBN 184606)
Alyssa R. Daskas, Esq. (SBN 359379)
MARTENSON, HASBROUCK & SIMON LLP
600 Anton Boulevard, Suite 1250
Costa Mesa, CA 92626

AND TO (address of record on the docket):
Vanessa W. Mott, Esq.
MARTENSON, HASBROUCK & SIMON LLP
5800 Armada Drive, Suite 101
Carlsbad, CA 92008
Attorneys for Defendant United Parcel Service, Inc.

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngehsi Newanforbi, In Propria Persona